

TENTATIVE RULING FOR CIVSB2523628
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Capers v. City of Fontana, et al

Motion: Demurrer and Motion to Strike

Movant: City of Fontana (City) and Deputy Oliver (Oliver) and Deputy O'Brien (O'Brien), collectively (Defendants)

Respondent: Ma'Lenna Capers (Capers/Plaintiff)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On August 22, 2025, Plaintiff filed her Complaint against Defendants alleging causes of action for (1) Professional Negligence, (2) Violation of Civil Rights 42 U.S.C. § 1983, (3) Discrimination, and (4) Failure to Conduct Child Welfare Check. On February 25, 2026, Defendants filed the instant demurrer and motion to strike.

Defendants demur to the first, third, and fourth causes of action on the grounds they are barred by Government Code section 945.6, subdivision (a)(1), which provides a six-month statute of limitations. They also demur to the second cause of action on the grounds Plaintiff fails to state facts sufficient to constitute a cause of action. Plaintiff opposes.

ANALYSIS

A demurrer is a pleading used to test the legal sufficiency of other pleadings, i.e., it raises issues of law, not fact, regarding the form or content of the opposing party's pleading. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of a demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on a demurrer, all facts pleaded in the complaint are assumed to be true however improbable they may be. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 966-967.) The court assumes the truth of all material facts that have been properly pleaded, of facts that may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, the Court does "not accept as true contentions, deductions, or conclusions of fact or law." (*In re Ins. Installment Fee Cases* (2012) 211 Cal.App.4th 1395, 1402, citing *Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) "[T]he question of plaintiff's ability to prove these allegations, or the possible difficulty in

making such proof does not concern the reviewing court.” (*Concerned Citizens of Costa Mesa, Inc. v. 32nd Agricultural Assn.* (1986) 42 Cal.3d 929, 936 (citations omitted).) The complaint is also to be liberally construed. (Code of Civ. Proc. §452.)

Meet and Confer

Under Code of Civil Procedure section 430.41, subdivision (a), Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. The parties should meet and confer at least five days before the responsive pleading is due. Under Code of Civil Procedure section 430.41, subdivision (a)(3), the demurring party must file a declaration stating either:

- (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.
- (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Defense counsel Kayla N. Watson filed a declaration which establishes that a meet and confer letter was sent to Plaintiff. This is an insufficient meet and confer attempt. However, considering the matter has been fully brief the court shall issue a ruling on the merits.

General Demurrer

A general demurrer challenges a complaint for failure to state a cause of action under Code of Civil Procedure section 430.10, subdivision (e). It is granted only where the facts alleged on the fact of the complaint fail to state a valid claim under any possible legal theory entitling the plaintiff to relief against the demurring defendant. (*Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998.) The plaintiff may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial § 7:41 (hereafter Weil & Brown), citing *Quelimane Co. v. Stewart Tile Guaranty Co.* (1989) 19 Cal.4th 26, 38-39.)

All that is necessary as against a general demurrer is to plead facts showing that the plaintiff may be entitled to some relief. In passing upon the sufficiency of a pleading, its allegations must

be liberally construed with a view to substantial justice between the parties.” (*Fundin v. Chicago Pneumatic Tool Co.* (1984) 152 Cal.App.3d 951, 955; *Michaelian v. State Compensation Insurance Fund* (1996) 50 Cal.App.4th 1093, 1104-1105.)

The complaint includes matters shown in attached exhibits and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on a complaint’s failure to state facts sufficient to constitute a cause of action (Code of Civ. Proc. §430.10, subd. (e)) should be granted only when the facts alleged on the face of the complaint fail to state *any* valid claim entitled to the plaintiff or disclose a complete defense to relief. Even if a plaintiff is mistaken as to the nature of the case or the legal theory on which he/she could prevail, the complaint is good against a general demurrer if the essential facts allege some valid cause of action. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

First, Third, and Fourth Causes of Action

Government Code section 945.6 provides, “any suit brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division must be commenced” within six months after the rejection from the public entity is personally delivered or deposited in the mail. (Gov. Code, § 945.6, subd. (a)(1).)

The Complaint includes Exhibit H, which is the claims rejection letter issued by Defendant City of Fontana. The claims were rejected on January 14, 2025, and the letter is dated January 15, 2025. (See Compl.; Exh. H.) The Complaint, however, was not filed until August 22, 2025. Therefore, it appears untimely on its face. There are no facts alleged either that could extend the period.

Second Cause of Action

Plaintiff’s Second Cause of Action is predicated on the fourth and fourteenth amendments. Plaintiff alleges she was unlawfully seized and detained without a lawful basis. (See Compl. ¶ 33.) She also alleges there were unlawful, unwanted, and harmful statements and threats made to her by the officers that constituted battery and excessive force. (¶¶ 34-35.)

“Section 1983 states, in pertinent part: “Every *person* who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the

jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law....” (Pierce v. San Mateo County Sheriff's Dept., (2014) 232 Cal.App.4th 995, 1006, emphasis in the original.)

In *Monell v. New York City Department of Social Services* (1978) 436 U.S. 658, the U.S. Supreme Court held that to maintain a claim under Section 1983, a plaintiff must precisely identify the constitutional violation he or she is alleging against a defendant. (*Id.* at p. 694.) General allegations a defendant's conduct was negligent, grossly negligent, or an act of bad judgment falls short of what is necessary to support a due process claim under the Fourteenth Amendment. (*Berman v. City of Daly City* (1993) 21 Cal.App.4th 276, 288.)

Furthermore, as Defendants highlight, Plaintiff identifies a violation of the fourth amendment against a municipality (City of Fontana). “[T]he language of § 1983, read against the background of the same legislative history, compels the conclusion that Congress did not intend municipalities to be held liable unless action pursuant to official municipal policy of some nature caused a constitutional tort. In particular, we conclude that a municipality cannot be held liable *solely* because it employs a tortfeasor—or, in other words, a municipality cannot be held liable under § 1983 on a *respondeat superior* theory. (*Monell, supra*, at p. 691, emphasis in the original.)

In the case at hand, Plaintiff has only alleged a threadbare allegation that her fourth amendment right was violated and a conclusory allegation that it was unlawful. These are not sufficient to maintain this cause of action.

Leave to Amend

Courts are very liberal in permitting amendments, not only where a complaint is defective in form, but also where substantive defects are apparent: “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any *reasonable possibility* that plaintiff can state a good cause of action. (*Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 484 [court should grant leave to amend if in all probability plaintiff will cure defect].)

However, no abuse of discretion will be found unless a potentially effective amendment is “both apparent and consistent with the plaintiff's theory of the case.” (*Camsi IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1542.) “Leave to amend *should be denied* where the facts are not in dispute and the nature of the claim is clear, but no liability exists under

substantive law.” (*Lawrence v. Bank of America* (1985) 163 Cal.App.3d 431, 436 (emphasis added); *Schonfeldt v. State of Calif.* (1998) 61 Cal.App.4th 1462, 1465 [if no liability as a matter of law, leave to amend should not be granted].)

RULING

1. Movant to give Notice.
2. Defendant’s Demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff shall file amended pleading within 20 days.
3. Motion to Strike is deemed MOOT.